

Short Title	Session and Chapter
Superannuation Act, 1892	55 & 56 Vict. c. 40.
Finance Act, 1911	1 & 2 Geo. 5. c. 48.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Exchequer and Audit Departments Act, 1921	11 & 12 Geo. 5. c. 52.
Government Annuities Act, 1929	19 & 20 Geo. 5. c. 29.
Finance Act, 1933	23 & 24 Geo. 5. c. 19.
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Old Age Pensions Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 31.
Ministers of the Crown Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 38.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Finance Act, 1940	3 & 4 Geo. 6. c. 29.
Superannuation Act, 1946	9 & 10 Geo. 6. c. 60.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Commonwealth Telegraphs Act, 1949	12, 13 & 14 Geo. 6. c. 39.
Superannuation Act, 1949	12, 13 & 14 Geo. 6. c. 44.
Wireless Telegraphy Act, 1949	12, 13 & 14 Geo. 6. c. 54.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.
Registered Designs Act, 1949	12, 13 & 14 Geo. 6. c. 88.
Vehicles (Excise) Act, 1949	12, 13 & 14 Geo. 6. c. 89.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Workmen's Compensation (Supplementa- tion) Act, 1951	14 & 15 Geo. 6. c. 22.
Telephone Act, 1951	14 & 15 Geo. 6. c. 52.
Post Office Act, 1953	1 & 2 Eliz. 2. c. 36.
Telegraph Act, 1954	2 & 3 Eliz. 2. c. 28.
Television Act, 1954	2 & 3 Eliz. 2. c. 55.
Post Office Savings Bank Act, 1954... ..	2 & 3 Eliz. 2. c. 62.
Workmen's Compensation and Benefit (Sup- plementation) Act, 1956	4 & 5 Eliz. 2. c. 51.
National Debt Act, 1958	7 & 8 Eliz. 2. c. 6.
Dog Licences Act, 1959	7 & 8 Eliz. 2. c. 55.

CHAPTER 16

Sierra Leone Independence Act, 1961

ARRANGEMENT OF SECTIONS

Section

1. Provision for the fully responsible status of Sierra Leone.
2. Consequential modifications of British Nationality Acts.
3. Consequential modification of other enactments.
4. Short title and interpretation.

SCHEDULES:

First Schedule—Area included in Sierra Leone.

Second Schedule—Legislative powers in Sierra Leone.

Third Schedule—Amendments not affecting law of Sierra Leone.

An Act to make provision for, and in connection with, the attainment by Sierra Leone of fully responsible status within the Commonwealth. [28th March, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provision for
the fully
responsible
status of
Sierra Leone.

1.—(1) On the twenty-seventh day of April, nineteen hundred and sixty-one (in this Act referred to as "the appointed day"), the Sierra Leone Colony and the Sierra Leone Protectorate (of which the combined area is that specified in the First Schedule to this Act) shall together constitute part of Her Majesty's dominions under the name of Sierra Leone.

(2) No Act of the Parliament of the United Kingdom passed on or after the appointed day shall extend, or be deemed to extend, to Sierra Leone as part of the law thereof, and as from that day—

(a) Her Majesty's Government in the United Kingdom shall have no responsibility for the government of Sierra Leone; and

(b) the provisions of the Second Schedule to this Act shall have effect with respect to legislative powers in Sierra Leone.

(3) Without prejudice to subsection (2) of this section, nothing in subsection (1) thereof shall affect the operation in Sierra Leone or any part thereof on and after the appointed day of any enactment, or any other instrument having the effect of law, passed or made with respect thereto before that day.

Consequential
modifications
of British
Nationality
Acts.

2.—(1) As from the appointed day, the British Nationality Acts, 1948 and 1958, shall have effect as if—

(a) in subsection (3) of section one of the said Act of 1948 (which provides for persons to be British subjects or Commonwealth citizens by virtue of citizenship of certain countries) the word "and" in the last place where it occurs were omitted, and at the end there were added the words "and Sierra Leone";

(b) in the First Schedule to the British Protectorates, Protected States and Protected Persons Order in Council, 1949, the words "Sierra Leone Protectorate" were omitted:

Provided that a person who immediately before the appointed day is for the purposes of the said Acts and Order in Council a British protected person by virtue of his connection with the Sierra Leone Protectorate shall not cease to be such a British protected person for any of those purposes by reason of anything contained in the foregoing provisions of this Act, but shall so

cease upon his becoming a citizen of Sierra Leone under the law thereof.

(2) Subject to the following provisions of this section, any person who immediately before the appointed day is a citizen of the United Kingdom and Colonies shall on that day cease to be such a citizen if—

- (a) under the law of Sierra Leone he becomes on that day a citizen of Sierra Leone ; and
- (b) he, his father or his father's father was born in any of the territories comprised in Sierra Leone.

(3) Subject to subsection (8) of this section, a person shall not cease to be a citizen of the United Kingdom and Colonies under the last foregoing subsection if he, his father or his father's father—

- (a) was born in the United Kingdom or in a colony ; or
- (b) is or was a person naturalised in the United Kingdom and Colonies ; or
- (c) was registered as a citizen of the United Kingdom and Colonies ; or
- (d) became a British subject by reason of the annexation of any territory included in a colony.

(4) A person shall not cease to be a citizen of the United Kingdom and Colonies under subsection (2) of this section if he was born in a protectorate, protected state or United Kingdom trust territory, or if his father or his father's father was so born and is or at any time was a British subject.

(5) A woman who is the wife of a citizen of the United Kingdom and Colonies shall not cease to be such a citizen under subsection (2) of this section unless her husband does so.

(6) Subsection (2) of section six of the British Nationality Act, 1948 (which provides for the registration as a citizen of the United Kingdom and Colonies of a woman who has been married to such a citizen) shall not apply to a woman by virtue of her marriage to a person who ceases to be such a citizen under subsection (2) of this section, or who would have done so if living on the appointed day.

(7) Subject to the next following subsection, the reference in paragraph (b) of subsection (3) of this section to a person naturalised in the United Kingdom and Colonies shall include a person who would, if living immediately before the commencement of the British Nationality Act, 1948, have become a person naturalised in the United Kingdom and Colonies by virtue of subsection (6) of section thirty-two of that Act (which relates to persons given local naturalisation before that commencement in a colony or protectorate).

(8) Any reference in subsection (3) or (4) of this section to a territory of any of the following descriptions, that is to say,

a colony, protectorate, protected state or United Kingdom trust territory, shall, subject to the next following subsection, be construed as a reference to a territory which is of that description on the appointed day ; and the said subsection (3) shall not apply to a person by virtue of any certificate of naturalisation granted or registration effected by the governor or government of a territory outside the United Kingdom which is not on that day of one of those descriptions.

(9) The protectorates of Northern Rhodesia and Nyasaland shall be excepted from the operation of any reference in subsection (4) or (8) of this section to a protectorate.

(10) Part III of the British Nationality Act, 1948 (which contains supplemental provisions) shall have effect for the purposes of subsections (2) to (9) of this section as if those subsections were included in that Act.

Consequential
modification
of other
enactments.

3.—(1) Notwithstanding anything in the Interpretation Act, 1889, the expression “colony” in any Act of the Parliament of the United Kingdom passed on or after the appointed day shall not include Sierra Leone.

(2) As from the appointed day—

(a) the expression “colony” in the Army Act, 1955, the Air Force Act, 1955, and the Naval Discipline Act, 1957, shall not include Sierra Leone or any part thereof ; and

(b) in the definitions of “Commonwealth force” in subsection (1) of section two hundred and twenty-five and subsection (1) of section two hundred and twenty-three respectively of the said Acts of 1955, and in the definition of “Commonwealth country” in subsection (1) of section one hundred and thirty-five of the said Act of 1957—

(i) the word “or” (being, in the said Acts of 1955, that word in the last place where it occurs in those definitions) shall be omitted ; and

(ii) at the end there shall be added the words “or Sierra Leone”.

(3) As from the appointed day, the provisions specified in the Third Schedule to this Act shall have effect subject to the amendments respectively specified in that Schedule, and Her Majesty may by Order in Council, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, make such further adaptations in any Act of the Parliament of the United Kingdom passed before this Act, or in any instrument having effect under any such Act, as appear to Her necessary in consequence of section one of this Act ; and any Order in Council made under this subsection may be varied or revoked by a subsequent Order in Council so made and,

though made after the appointed day, may be made so as to have effect from that day:

Provided that this subsection shall not extend to Sierra Leone or any part thereof as part of the law thereof.

4.—(1) This Act may be cited as the Sierra Leone Independence Act, 1961. Short title
and
interpretation.

(2) References in this Act to any enactment are references to that enactment as amended or extended by or under any other enactment.

SCHEDULES

FIRST SCHEDULE

Section 1

AREA INCLUDED IN SIERRA LEONE

The area in West Africa lying between the sixth and tenth degrees of north latitude and the tenth and fourteenth degrees of west longitude and bounded on the north by the boundary line delimited under the provisions of the Anglo-French Convention dated the twenty-eighth day of June, 1882, the Anglo-French Arrangement dated the tenth day of August, 1889, the Anglo-French Agreement dated the twenty-first day of January, 1895, and the notes exchanged between His Majesty's Principal Secretary of State for Foreign Affairs and the Ambassador of the French Republic, and dated the sixth day of July, 1911, and on the south by the Anglo-Liberian boundary line delimited under the provisions of the Anglo-Liberian Conventions dated the eleventh day of November, 1885, and the twenty-first day of January, 1911.

SECOND SCHEDULE

Section 1.

LEGISLATIVE POWERS IN SIERRA LEONE

1. The Colonial Laws Validity Act, 1865, shall not apply to any law made on or after the appointed day by the legislature of Sierra Leone.

2. No law and no provision of any law made on or after the appointed day by that legislature shall be void or inoperative on the ground that it is repugnant to the law of England, or to the provisions of any Act of the Parliament of the United Kingdom, including this Act, or to any order, rule or regulation made under any such Act, and, subject to paragraph 6 of this Schedule, the powers of that legislature shall include the power to repeal or amend any such Act, order, rule or regulation in so far as it is part of the law of Sierra Leone or any part thereof.

3. The said legislature shall have full power to make laws having extra-territorial operation.

4. Without prejudice to the generality of the foregoing provisions of this Schedule, sections seven hundred and thirty-five and seven hundred and thirty-six of the Merchant Shipping Act, 1894, shall be construed as though references therein to the legislature of a British possession did not include references to the legislature of Sierra Leone.

2ND SCH.

5. Without prejudice to the generality of the foregoing provisions of this Schedule, section four of the Colonial Courts of Admiralty Act, 1890 (which requires certain laws to be reserved for the signification of Her Majesty's pleasure or to contain a suspending clause) and so much of section seven of that Act as requires the approval of Her Majesty in Council to any rules of court for regulating the practice and procedure of a Colonial Court of Admiralty shall cease to have effect in Sierra Leone.

6. Nothing in this Act shall confer on the legislature of Sierra Leone any power to repeal, amend or modify the constitutional provisions otherwise than in such manner as may be provided for in those provisions.

In this paragraph, the expression "the constitutional provisions" means this Act, any Order in Council made before the appointed day which revokes Parts II to VI of the Sierra Leone (Constitution) Order in Council, 1958, and the Sierra Leone Protectorate Orders in Council, 1951 to 1960, and any law, or instrument made under a law, of the legislature of Sierra Leone made on or after that day which amends, modifies, re-enacts with or without amendment or modification, or makes different provision in lieu of, any of the provisions of this Act, that Order in Council or any such law or instrument previously made.

Section 3.

THIRD SCHEDULE

AMENDMENTS NOT AFFECTING LAW OF SIERRA LEONE

Diplomatic immunities

1. In section four hundred and sixty-one of the Income Tax Act, 1952 (which relates to exemption from income tax in the case of certain Commonwealth representatives and their staffs)—

(a) in subsection (2), the word "or" (in the last place where it occurs before the words "for any state") shall be omitted, and immediately before the words "for any state" there shall be inserted the words "or Sierra Leone";

(b) in subsection (3), the word "or" (in the last place where it occurs before the words "and Agent-General") shall be omitted, and immediately before the words "and Agent-General" there shall be inserted the words "or Sierra Leone";

2. In subsection (6) of section one of the Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952, immediately before the word "and" in the last place where it occurs there shall be inserted the words "Sierra Leone".

3. In subsection (5) of section one of the Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961, after the word "Nigeria" there shall be inserted the words "Sierra Leone".

Financial

4. In section two of the Import Duties Act, 1958, in subsection (4), after the word "Nyasaland" there shall be inserted the words "Sierra Leone".

3RD SCH.

5. In the Colonial Stock Act, 1934 (which extends the stocks which may be treated as trustee securities) the expression "Dominion" shall include Sierra Leone; and, during any period falling on or after the appointed day during which there is in force as part of the law of Sierra Leone any instrument passed or made before that day which makes provision corresponding to the undertaking required to be given by the Government of a Dominion under paragraph (a) of subsection (1) of section one of that Act, paragraphs (a) and (b) of the said subsection (1) shall be deemed to have been complied with in the case of Sierra Leone.

Visiting forces

6. In the Visiting Forces (British Commonwealth) Act, 1933, section four (which deals with attachment and mutual powers of command) and the definition of "visiting force" for the purposes of that Act which is contained in section eight thereof shall apply in relation to forces raised in Sierra Leone as they apply in relation to forces raised in Dominions within the meaning of the Statute of Westminster, 1931.

7. In the Visiting Forces Act, 1952—

(a) in paragraph (a) of subsection (1) of section one (which specifies the countries to which that Act applies) the word "or" in the first place where it occurs shall be omitted, and at the end there shall be added the words "Sierra Leone or";

(b) in paragraph (a) of subsection (1) of section ten the expression "colony" shall not include Sierra Leone or any part thereof;

and, until express provision with respect to Sierra Leone is made by an Order in Council under section eight of that Act (which relates to the application to visiting forces of law relating to home forces), any such Order for the time being in force shall be deemed to apply to visiting forces of Sierra Leone.

Ships and aircraft

8. In subsection (2) of section four hundred and twenty-seven of the Merchant Shipping Act, 1894, as substituted by section two of the Merchant Shipping (Safety Convention) Act, 1949, the word "or" (in the last place where it occurs before the words "or in any") shall be omitted, and immediately before the words "or in any" there shall be inserted the words "or Sierra Leone".

9. In the proviso to subsection (2) of section six of the Merchant Shipping Act, 1948, the word "or" in the last place where it occurs shall be omitted and at the end there shall be added the words "or Sierra Leone".

10. In the definition of "excepted ship or aircraft" in paragraph 3 of the Third Schedule to the Emergency Laws (Repeal) Act, 1959, the word "or" (in the last place where it occurs before the words "or in any") shall be omitted, and immediately before the words "or in any" there shall be inserted the words "or Sierra Leone".

3RD SCH.

11. The Ships and Aircraft (Transfer Restriction) Act, 1939, shall not apply to any ship by reason only of its being registered in, or licensed under the law of, Sierra Leone; and the penal provisions of that Act shall not apply to persons in Sierra Leone (but without prejudice to the operation with respect to any ship to which that Act does apply of the provisions thereof relating to the forfeiture of ships).

12. In the Whaling Industry (Regulation) Act, 1934, the expression "British ship to which this Act applies" shall not include a British ship registered in Sierra Leone.

Copyright

13. The references in section thirty-one of the Copyright Act, 1956, to a colony shall not include Sierra Leone.

14. If the Copyright Act, 1911, so far as in force in the law of Sierra Leone is repealed or amended by that law at a time when sub-paragraph (2) of paragraph 39 of the Seventh Schedule to the Copyright Act, 1956 (which applies certain provisions of that Act in relation to countries to which the said Act of 1911 extended) is in force in relation to Sierra Leone, the said sub-paragraph (2) shall thereupon cease to have effect in relation thereto.

Divorce jurisdiction

15. In subsection (2) of section two of the Indian and Colonial Divorce Jurisdiction Act, 1926 (which enables section one of that Act to be extended to certain countries, but not to any of the countries named in the said subsection (2)) the word "and" shall be omitted in the last place where it occurs and at the end there shall be added the words "and Sierra Leone".

Commonwealth Institute

16. In subsection (2) of section eight of the Imperial Institute Act, 1925, as amended by the Commonwealth Institute Act, 1958 (which relates to the power to vary the provisions of the said Act of 1925 if an agreement for the purpose is made with the governments of certain territories which for the time being are contributing towards the expenses of the Commonwealth Institute) the word "and" shall be omitted and at the end there shall be added the words "and Sierra Leone".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Colonial Laws Validity Act, 1865	28 & 29 Vict. c. 63.
Interpretation Act, 1889	52 & 53 Vict. c. 63
Colonial Courts of Admiralty Act, 1890 ...	53 & 54 Vict. c. 27
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Copyright Act, 1911	1 & 2 Geo. 5. c. 46.
Imperial Institute Act, 1925	15 & 16 Geo. 5. c. xvii.
Indian and Colonial Divorce Jurisdiction Act, 1926	16 & 17 Geo. 5. c. 40.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Visiting Forces (British Commonwealth) Act, 1933	23 & 24 Geo. 5. c. 6.
Colonial Stock Act, 1934	24 & 25 Geo. 5. c. 47.
Whaling Industry (Regulation) Act, 1934 ...	24 & 25 Geo. 5. c. 49.
Ships and Aircraft (Transfer Restriction) Act, 1939	2 & 3 Geo. 6. c. 70.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Merchant Shipping (Safety Convention) Act, 1949	12, 13 & 14 Geo. 6. c. 43.
Income Tax Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 10.
Diplomatic Immunities (Commonwealth Coun- tries and Republic of Ireland) Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 18.
Visiting Forces Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 67.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Import Duties Act, 1958	6 & 7 Eliz. 2. c. 6.
British Nationality Act, 1958	6 & 7 Eliz. 2. c. 10.
Commonwealth Institute Act, 1958	6 & 7 Eliz. 2. c. 16.
Emergency Laws (Repeal) Act, 1959	7 & 8 Eliz. 2. c. 19.
Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961	9 & 10 Eliz. 2. c. 11.

CHAPTER 17

Betting Levy Act, 1961

ARRANGEMENT OF SECTIONS

Horserace Betting Levy Board

Section

1. Establishment of Horserace Betting Levy Board.
2. General powers and duties of Levy Board.

Levy on bookmakers

3. Bookmakers' levy schemes.
4. Assessment of or exemption from bookmakers' levy.
5. Bookmaker's permits and the levy.